Many do not share the Court's rosy appraisal of the past century. But if the Court prefers an independent Federal Reserve Board, then its issue is not with the President but with the Constitution. Regardless of whether unaccountable executive officers like Cook would better govern the economy, the Framers rejected such a "promised land of technocratic governance." *Slaughter*, 609 U. S., at 452; see A. de Tocqueville, Democracy in America 86–88, 233–235 (H. Mansfield & D. Winthrop transl. 2000). They instead chose government by the people. As a court, our duty is not to second-guess that decision, but to uphold it.

I respectfully dissent from the denial of the stay application.

JUSTICE ALITO, with whom JUSTICE GORSUCH joins, dissenting.

This case presents many thorny legal questions. What is the substance of the "for cause" removal standard as applied to Federal Reserve Governors? 12 U. S. C. § 242. Do Governors have an implied right of action to enforce that removal protection? See *Alexander* v. *Sandoval*, 532 U. S. 275, 286–287 (2001). What degree of judicial review, if any, applies to the President's determination that cause exists? See *Reagan* v. *United States*, 182 U. S. 419, 425 (1901). What showing of "irreparable injury," if any, can entitle a removed executive officer to an interim reinstatement order? See *Sampson* v. *Murray*, 415 U. S. 61, 84, 92, n. 68 (1974). Does the President's social-media post purporting to remove Governor Cook give her standing to seek an injunction against parties who never attempted to effectuate her removal? See *Whole Woman's Health* v. *Jackson*, 595 U. S. 30, 48 (2021). May courts, consistent with Articles II and III of the Constitution, countermand the President's attempted removal of a principal executive officer? See *Trump* v. *United States*, 603 U. S. 593, 608–609 (2024). Can the President appeal an injunction that no enjoined party challenges?

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Some of these questions present issues of first impression, and many of them lack obvious answers. More important, the lower courts in this case have passed on very few of these issues and have done so in a preliminary and rushed fashion. We often say that "we are a court of review, not of first view," *Cutter* v. *Wilkinson*, 544 U. S. 709, 718, n. 7 (2005), but the Court has strayed far from that oft-repeated maxim here.

What is before us is simply an application for a stay pending appeal, and the Court should have granted or denied that application in a brief order last fall. The nascency of this lawsuit and the novelty of the issues that it presents militated against holding oral argument and issuing a comprehensive opinion at this juncture. Rather than resolving several challenging and underdeveloped issues at this early stage of the litigation, I would decide this application solely on the two issues that the District Court addressed. And because the District Court resolved those issues incorrectly, I respectfully dissent from the Court's denial of a stay.

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I

A summary of this case's history illustrates the imprudence of how the Court has handled this application. The President purported to remove Governor Cook from office on August 25, and on August 28, she filed suit against the President, the Board of Governors of the Federal Reserve, and its chairman, Jerome Powell.

After 12 days, one round of temporary-restraining-order briefing, and a single hearing, the District Court issued a preliminary injunction that barred Powell and the Board of Governors from effectuating the President's attempted removal of Cook. The court rested its order on two grounds: The President's allegations were not "cause" to remove Cook because they pertained to "conduct before she began serving on the Federal Reserve Board," 804 F. Supp. 3d 14, 32–33 (DC 2025), and the President violated the Due Process Clause by failing to provide Cook sufficient pretermination

process, *id.*, at 33–39. The President appealed and moved to stay the injunction in the Court of Appeals for the D. C. Circuit. Four days later, that court denied the motion, relying only on Cook's due process claim. Order in No. 25–5326 (Sept. 15, 2025), App. to Application 1a–7a (Garcia, J., joined by Childs, J., concurring) (Order). The President then applied for a stay from this Court.

When that application arrived here, this litigation was just 21 days old. There had been only two rounds of abbreviated briefing below and no meaningful development of a factual record. Indeed, the record does not even contain copies of Cook's allegedly fraudulent mortgage applications.

Of course, parties may appropriately seek (and courts may appropriately grant) stays early in a litigation. No court, including this Court, should sit on its hands when interim relief is appropriate. But this does not mean that the Court must reach out to opine on each issue that could conceivably arise in a case's future. Here, the incipiency of this case and the complexity of the issues that it presents counseled in favor of a light touch by this Court, regardless of whether we granted or denied the application. To that end, the Court should have resolved the President's application shortly after we received it. And in doing so, we should have focused on the few issues that the courts addressed below. If a majority had desired, we could have issued a statement explaining our decision. That is exactly how we have handled nearly all our stay applications in recent years.

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Had we adhered to this well-worn path and decided this application in October, the parties could have continued litigating this case in the lower courts. See, *e. g.*, *Doe* v. *Mills*, No. 21A83 (Oct. 19, 2021) (Breyer, J., in chambers) (denying stay without prejudice to reapply after the lower court issues a final decision). By now, the District Court might well have granted summary judgment for one of the parties, providing a fuller exposition of the relevant facts and legal issues. Or perhaps the D. C. Circuit would have resolved an expedited appeal. Although the panel performed admirably

given the four days that it had to decide the President's stay motion, nobody can doubt that the panel would have produced more comprehensive opinions if it had even a fraction of the 280-plus days that this Court has spent with the case. Either way, this Court could have reentered the fray when we inevitably granted certiorari.

Instead, the Court departed from its normal practice and "deferred" ruling on this application, bringing proceedings in the lower courts to a 9-month standstill. 606 U. S. 1062 (2025). We then ordered the parties to submit more briefing than they had filed at any other point in this litigation. In January, we held oral argument, marking just the second in-court proceeding in this entire suit. The Court now issues a full-length opinion that purports to resolve many complicated and novel legal questions on an underdeveloped record while ignoring lurking jurisdictional issues. "Either out of humility or out of self-respect (one or the other), the Court should decline to answer" these "incredibly difficult" questions in this case's current posture. *PGA TOUR, Inc.* v. *Martin*, 532 U. S. 661, 700 (2001) (Scalia, J., dissenting).

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II

I would grant the application because, within the narrow confines of this case's posture, the President has satisfied the traditional stay factors.

Consider first the President's likelihood of success on the merits. If the Court were to grant certiorari at this stage of the litigation, we would normally limit our consideration to the specific issues on which the courts below passed. See *F. Hoffmann-La Roche Ltd* v. *Empagran S. A.*, 542 U. S. 155, 175 (2004). Those issues are (1) whether removal "for cause" is limited to removal for in-office conduct, and (2) whether the President's attempt to remove Cook violated the Due Process Clause.

On those two issues, the courts below were incorrect. As the majority and JUSTICE THOMAS apparently agree, the District Court erred in holding that removal "for cause"

means removal only for "events that have occurred while [the officer is] in office." 804 F. Supp. 3d, at 30; see *ante*, at 544–547; *ante*, at 578–579 (dissenting opinion). And as JUSTICE THOMAS and Judge Katsas have explained, Cook lacks a private property interest in her seat on the Board of Governors. See *ante*, at 577–578; Order 16a–19a (Katsas, J., dissenting). Thus, the President's attempt to remove her could not have violated the Due Process Clause. See *American Mfrs. Mut. Ins. Co.* v. *Sullivan*, 526 U. S. 40, 59 (1999) ("Only after finding the deprivation of a protected interest do we look to see if the [defendant's] procedures comport with due process").

Because the courts below resolved these two issues incorrectly, I would conclude that the President has shown a likelihood that we would reverse at this preliminary stage, leaving all other issues to be developed on remand in the first instance.* As to the remaining stay factors, this Court has held that they are satisfied when a lower court countermands the President's removal of a principal executive officer. See *Trump* v. *Wilcox*, 605 U. S. 922, 922–924 (2025). A stay is therefore warranted here.

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* * *

I respectfully dissent.

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*The Court claims that this disposition would have left "the public in limbo" and "sow[n] doubt as to the status of one of our Nation's (and the world's) most important financial institutions." *Ante*, at 557. See also *ante*, at 560–561 (KAVANAUGH, J., concurring). But granting a stay on the ground set out above would have had no such effect. It would have simply returned the case to the courts below so that the ligation could continue in the normal course. That disposition would not have signaled any view on the question whether the Constitution permits Congress to restrict a President's authority to remove a member of the Federal Reserve's Board of Governors. That question is indeed important and sensitive, but it is not before us in this case because the Government does not challenge the constitutionality of the statutory restriction on the President's power to remove Governor Cook.